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EXTRAORDINARY

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PART IV (A) — PROVINCIAL COUNCILS
Provincial Councils Notifications

UVA PROVINCE PROVINCIAL COUNCIL

Statute for Council Secretariat Staff of the Provincial Council of Uva Province Bearing No. 3 of 2017

THE above statute having approved by the Democratic Socialist Republic of Sri Lanka on the date of 27th July, 2017 has been approved by the Hon. Governor of the Uva Province on the date of 09th August, 2017 with effect from 01st of August, 2017 and which is here by published for the notification of the public.

R. A. H. A. SAMARASINGHE,
Secretary,
Uva Provincial Council.

Council Secretariat,
Uva Provincial Council,
King's Street,
Badulla,
10th August 2017.

**STATUTE FOR COUNCIL SECRETARIAT STAFF OF THE PROVINCIAL COUNCIL OF UVA
PROVINCE BEARING No. 3 OF 2017**

Statute for establishing the council secretariat staff of the provincial Council of Uva province, for recruiting individuals those who appointed to it, regulating their service and internal administrative conditions, for cancelling the statute of the provincial Council (Council secretariat staff) bearing No. 7 of 1990 and connected and consequential affairs with the same.

Introduction.

It is enacted thus, by the Uva provincial Council of the Democratic Socialist Republic of Sri Lanka.

Short name and
effective date.

1. This statute is called as "Statute for council secretariat staff of the provincial council of Uva province bearing No. 3 of 2017" and it is empowered from the date of approval of the Governor for Uva province.

2. A secretariat (called as "Council Secretariat" hereinafter) would be established in a decided portion.



Council
Secretary.

3. There shall be a secretary in the Secretariat of the provincial council.

- (i) The secretary would be appointed by the Governor and would be in the post till being with well behavior under rules and regulations of sub-sections of this statute ;
- (ii) Under the above Section (i), a senior office of the Sri Lanka administrative Service and holds a post in the public Service or provincial public Service ;
- (iii) The Secretary post is a designation entitled for pension. And the ordinance of widow and orphan pension scheme should be influenced with the secretary post for retirement or pension;
- (iv) The post is entitled for a salary, allowance and benefits relevant to the rank and grade of the Secretary and additionally, he/she should be paid with allowances paid for the staff of the council Secretariat in accordance with the sub - section 10 (ii) of the this statute. It shall be an expense for the fund of the council ;
- (v) During the period of holding the Secretary post no reductions could be done from the salary or facilities provided;
- (vi) The Secretary post would be vacated,
 - (a) Because of death, or
 - (b) Because of resigning by sending a letter to the Governor, or
 - (c) Because of going on transfer to another post of the Sri Lanka Administrative Service on the own wish or ;
 - (d) Because of retirement due to completing the age of 55 or anytime thereafter nor completing the age of sixty or;
 - (e) Because of sickness or physical or mental inefficiency nor disciplinary action, or;
 - (f) Because of imprisonment due to the judgment declared by a court. Secretary post would not be vacated on any other than the above reasons.
- (vii) In any occasion the Secretary is unable to carry- out his/ her duties of the post temporarily, due to sickness or any other inefficiency nor because of emigration from the island, another senior officer of the Sri Lanka Administrative Service could be appointed to carry -out duties instead of the Secretary by the Governor in accordance with regulation of the section 3 (1) above on performing basic.

Staff advisory
committee.

4.(i) A staff advisory committee should be established, mentioned as "advisory committee" hereinafter with individuals mentioned below;

(ii) (a) The chairman of the provincial council;

Composition of
the advisory
committee.

(b) The chief minister of the provincial council or a member of the provincial council nominated by the chief minister;

(c) The opposition leader of the provincial council or a member of the provincial council nominated by him.

The chief Secretary or a representative of him. The Secretary.

(iii) The chairman and Secretary of the council ought to be the chairman and Secretary of the advisory committee.

(iv) Minimum three members including the chairman of the advisory committee must be present in an advisory committee meeting. Quorum.

5.(i) Advising and recommending for the identification of new posts;

(ii) Deciding facilities and benefits those should be provided to the secretariat staff. Task of the advisory committee.

(iii) submitting recommendations to the Governor, while deciding allowances ought to be paid for members of the staff ;

(iv) Deciding internal conditions for the secretariat staff should be done by the advisory committee.

6.(i) The cadre of the council secretariat staff should be according to the approval of the department of mana ment service. Council Secretariat staff.

(ii) The council secretariat staff shall be consisted with officers occupied in the island - wide service and provincial public service;

(iii) The cadre of employees could be changed on the recommendation of the staff advisory committee and the chief secretary, and with the approval of the department of management service ;

(iv) From the date of operation of this statute, the officers and employees who occupied with the service of the secretariat staff are considered as officers and employees of the secretariat staff on their written consent and under this statute. Filling the current and future vacancies can by done by the secretary who empowered to do so regarding with minor employees and other ranks on the request of the secretary and forwarded by the chief secretary to the authorized officer;

(v) The period of service in the council secretariat should be considered as the period of service in the proviod of service in the provincial pubile service. And also, each and every facilities and benefits entitled for the other officers of Uva provincial should be providedeal.

(vi) officers and employees being considered as council secretariat staff should not be impaired for the seniority of officers and employees of provincial public service those who are in the same or equal or equal posts, in accordance with the section (iv) above of this statute. performing services joined with this staff should not be a barrier to get a promotion or to sit for such examinations nor promotions of the current post and to sit for such examinations.

of the council secretariat should be bound with the following conditions.

Conditions of Administrative.

(a) The secretariat staff is bound to protect secrecy of duties and to be responsible for its duties;

(b) Must perform duties full impartially.

(c) Needed occasions the staff is bound to perform duties till the end of provincial council meetings;

(d) Officers and employees should be with a suitable dress as to not damage the respect of the council, while performing duties therein during the time of provincial council meetings;

(e) dealing with Hon. Members of the provincial council, well manners should be protected.

Vacation of posts.	7. 1. Posts of officers/ employees of the secretariat staff shall be vacated on reasons below.
	(a) Due to sending on retirement;
	(b) Due to obtaining transfers ;
	(c) Due to resigning ;
	(d) Due to dismissing on disciplinary action ;
	(e) Due to imprisonment declared as a judgment by a court ;
	(f) Due to death.
Creating new posts.	8. Identifying new posts those needed for a very good administration and obtaining approval of the department of management service for that, should be done by the secretary on the recommendation of the secretariat advisory committee.
Transfers.	9. (i) (a) if, a person who is holding a post of the Uva provincial public service ought to be transferred into the secretariat staff, an earlier written consent of the secretary should be obtained.
	(b) A person who appointed or transferred to the secretariat staff on the request the secretariat without the earlier written consent of the secretary.
	(ii) However, the secretary cannot object normally to release such an officer, unless on the reasons below.
	(a) In an occasion that his/her service in the secretariat comes under an agreement.
	(b) Even though his/her service not comes under an agreement, he/she has been trained specially by the secretariat, to perform duties in the secretariat.
	(c) In an occasion when the secretary is considering that the releasing of such an officer would be effected adversely while carrying-out affairs of the secretariat.
	(d) While the secretary recommending that it is suitable to transfer a particular officer because of an administrative cause, officers and employees could be transferred through the chief secretary.
	(e) The officers/employees who need transfers can apply for annual transfers on their own wish.
	(f) Conditions of transfers enacted on the policy of annual transfers are not compulsory for the secretariat staff.
	(g) Officers recruited for posts those approved only for the secretariat could not be sent on transfers.
	10. (i) Salary and other allowances for the staff ought to be paid from the fund of the council.
Salary and the allowances of the staff	(ii) For officers and employees those who are appointed to the council secretariat and till they being in the service of the secretariat, an extra allowance of a certain percentage of their basic salary as decided, in addition to the salary and allowances paid for Uva provincial public servants, with the recommendation of the staff advisory committee and on the approval of the Governor.

11. The authorized person for discipline should be authorized respectively by the Public Service Commission and the Governor of the province, as the council secretariat staff is being consistence with public service officers and provincial public service officers and employees.	Disciplinary actions.
12. The council secretariat staff has the determination for retirement at any time after completing the age of 55 years or completing the age of 60 years and could be determined by a request made at least six (06) months earlier than the date expecting to go on pension.	Retirement of the staff
13. An estimate relevant to expenses of the council secretariat for each year should be prepared by the secretary and to be submitted to the chief secretary in accordance with the fund allocated to the council secretariat through the annual financial statement.	Finance
14. Auditing should be occurred under provisions of the provincial council Act bearing No. 42 of 1987.	Auditing
15. The constitution of the Democratic Socialist Republic of Sri Lanka, rules and regulations of the establishment code, regulations of the Uva provincial disciplinary code, financial regulations of the Uva province, regulations enacted already by the Governor, Chief Secreraty and the Uva Provincial Public Service Commission and could be enacted in future ought to be relevant to the council secretariat staff.	General regulations and orders.
16. Definition -	Definitions
"Provincial Council" - the Uva provincial council	
"Governor" - the Governor of Uva province	
"Chief Minister" - the chief minister of Uva province	
"Chairman" - the Chairman of the Uva provincial council	
"Chief Secretary" - the chief secretary of the Uva province	
"Secretary" - the secretary of the council secretariat	
"Advisory Committee" - the advisory committeee for the staff	
"Secretariat" - the secretariat of the Uva provinial council	
"Secretariat staff" - the staff of the Uva provincial council secretariat.	
17. The statute of the provincial council secretariat staff bearing No. 07 of 1990 would be cancelled from the date of operation of this statute and all activities implemented in accordance with the same up-to now would not be treated as invalid and should be treated as implemented according to this statute.	
18. in the event of any inconsistency in between the Sinhala and Tamil text of this statute, Sinhala shall prevail.	Prevailing of the sinhala text

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